CRIMINALIZING REPORTING

# Kazakhstan v. Aigul Utepova

9 October 2026

# CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

# ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

| | |
|---|---|
| **Jurisdiction** | Kazakhstan |
| **Original report** | April 2022 |
| **Dated update covered** | 2025 |
| **Research cutoff** | 9 October 2026 |
| **Historical assessment** | TrialWatch grade D (original report only) |

## SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

## CONTENTS

Executive Summary

Background and Procedural History

Subsequent Developments

Legal and Procedural Assessment

Conclusion and Outstanding Records

Sources and References

# EXECUTIVE SUMMARY

**LATEST VERIFIED POSITION**

## UN individual communication registered; last confirmed pending in 2025; present restrictions unverified

Latest verified procedural status appears in TrialWatch's submission for the June-July 2025 Human Rights Committee session: Aigul Utepova v. Kazakhstan, No. 4903/2023, pending. Exact submission day is unstated. This does not establish a UN merits decision, domestic reversal, release, termination of activity restrictions, or removal of banking restrictions as of October 2026.

CFJ announced an actual UN complaint in April 2022. Its submission for the June-July 2025 Human Rights Committee session identifies Utepova's registered communication, No. 4903/2023, as pending: the latest verified procedural status. [2] [3]

Her present liberty and financial restrictions remain unverified; sentence duration cannot establish their termination.

2. Clooney Foundation for Justice, 27 April 2022. Journalist Convicted Under Unfair Anti-Extrem...

3. Clooney Foundation for Justice..., 2025; exact submission da.... TrialWatch Submission to the UN Human Rights...

# BACKGROUND AND PROCEDURAL HISTORY

The supplied April 2022 report concerns journalist Aigul Utepova's prosecution under Article 405(2) for alleged participation in the activities of banned opposition groups, the Democratic Choice of Kazakhstan and Koshe Party. The prosecution relied on political commentary and social-media activity; the report found no allegation that she advocated violence. She disputed that reporting or commenting on the groups amounted to participation in them. [1]

Following arrest in September 2020, she spent months under house arrest and underwent involuntary psychiatric confinement from 23 November to 11 December 2020. Release from the clinic was a distinct event and did not establish release from house arrest. The report examined the justification and safeguards for confinement as well as the later trial. [1]

On 29 April 2021, the trial court imposed one year of restricted movement, a two-year ban on social-media use and public activism, and 100 hours of compulsory labor. Her conviction appeal was rejected in June 2021. The report also documented inclusion on a terrorism-financing-related list and blocked bank access. These are historical findings, not verification that the same restraints remain active in 2026. [1]

TrialWatch expert Dr. Eva Szeli assigned the original grade D. The report identified pretrial and trial rights violations, problems with expert evidence and disclosure, and the vague, overbroad application of anti-extremism rules to nonviolent expression. The present follow-up attributes those conclusions to the original report without giving the case a new grade. [1]

## KEY PROCEDURAL DATES

| | |
|---|---|
| **23 November 2020** | Involuntary psychiatric confinement began; ended on 11 December, separately from house arrest. [1] |
| **29 April 2021** | Convicted and sentenced to restricted liberty, activity ban and compulsory labor. [1] [4] |
| **1 June 2021** | Conviction appeal rejected, according to CPJ's account based on the ruling and journalist. [5] |
| **27 April 2022** | CFJ and Debevoise announced that a Human Rights Committee communication had been submitted. [2] |
| **2025** | 2025 HRC submission: communication 4903/2023 pending. [3] |

1. User-supplied original report, April 2022.
2. Clooney Foundation for Justice, 27 April 2022. Journalist Convicted Under Unfair Anti-Extrem...
3. Clooney Foundation for Justice..., 2025; exact submission da.... TrialWatch Submission to the UN Human Rights...
4. Committee to Protect Journalists, 29 April 2021. Kazakh journalist Aigul Utepova convicted of...
5. Committee to Protect Journalists, Undated historical profil.... Aigul Utepova

## SUBSEQUENT DEVELOPMENTS

CFJ's April 2022 statement says the communication sought reversal of the conviction, an apology and reparations, as well as reform of anti-extremism laws. Those are the representatives' requested remedies, not relief already granted by the Committee. The same statement describes frozen bank access and health and professional harm as they were understood at that time. [2]

The 2025 NGO submission confirms registration and then-pending status, not a Committee decision. Its session date, rather than later search indexing, dates the account. [3]

CPJ's historical profile records rejection of the appeal on 1 June 2021 and says Utepova had not yet submitted her planned UN complaint as of October 2021. That earlier statement is consistent with a subsequent filing announced in April 2022, rather than evidence against it. The profile should not be read as a live prisoner-status record. [5]

## LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

registration is meaningful procedural progress, not success on admissibility, merits or implementation. [3]

post-sentence restrictions require independent verification. Restricted movement, a professional or speech ban, a criminal record, and financial-list measures need not end together. Accordingly, neither the passage of one or two years nor a historical NGO profile justifies declaring her free of restrictions or still confined. [1] [4]

1. User-supplied original report, April 2022.
2. Clooney Foundation for Justice, 27 April 2022. Journalist Convicted Under Unfair Anti-Extrem...
3. Clooney Foundation for Justice..., 2025; exact submission da.... TrialWatch Submission to the UN Human Rights...
4. Committee to Protect Journalists, 29 April 2021. Kazakh journalist Aigul Utepova convicted of...
5. Committee to Protect Journalists, Undated historical profil.... Aigul Utepova

# CONCLUSION AND OUTSTANDING RECORDS

The registered UN complaint was last confirmed pending in 2025. Later outcome and current personal circumstances remain unresolved. [3]

## RECORDS NOT VERIFIED

1. Has the Human Rights Committee decided admissibility or merits in communication No. 4903/2023?

2. Was any domestic conviction review, pardon, expungement or other remedy granted?

3. What document confirms completion or termination of restricted liberty and the activity ban?

4. Is Utepova currently included on the financial-monitoring list, and has access to her bank accounts been restored?

5. Can counsel or the journalist provide a dated account of her present circumstances?

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

3. Clooney Foundation for Justice..., 2025; exact submission da.... TrialWatch Submission to the UN Human Rights...

# SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Kazakhstan v. Aigul Utepova**
TrialWatch / original report authors. April 2022.
Local PDF: kazakhstan-v-aigul-utepova.pdf
Coverage: Historical case baseline and original assessment

2. **Journalist Convicted Under Unfair Anti-Extremism Law in Kazakhstan Should Have Conviction Overturned**
Clooney Foundation for Justice. 27 April 2022.
Read source at cfj.org
Coverage: Actual Human Rights Committee communication submitted by TrialWatch and Debevoise; requested remedies; contemporary frozen bank access.

3. **TrialWatch Submission to the UN Human Rights Committee: 144th Session, June-July 2025, Review of Kazakhstan**
Clooney Foundation for Justice / TrialWatch; hosted by OHCHR. 2025; exact submission day unstated.
Read source at tbinternet.ohchr.org
Coverage: Page 1, footnote 4: communication 4903/2023 pending.

4. **Kazakh journalist Aigul Utepova convicted of participating in banned political groups**
Committee to Protect Journalists. 29 April 2021.
Read source at cpj.org
Coverage: Sentence components and distinction between restricted freedom and activity ban.

5. **Aigul Utepova**
Committee to Protect Journalists. Undated historical profile; contains information through October 2021.
Read source at cpj.org
Coverage: Appeal rejected 1 June 2021; planned UN application not filed as of October 2021, subsequently superseded by CFJ filing announcement.